



Vision

"To be a global leader in promoting good corporate governance"

Motto

सत्यं वद। धर्मं चर। इष्टार्थे तेष्ट तन्मात्रेः कर्तव्यं तेष्ट त्वेष्ट

Mission

"To develop high calibre professionals facilitating good corporate governance"

Friday, January 10, 2025

Info Capsule

President

CS B Narasimhan

Vice President

CS Dhananjay Shukla

❖ Business & Economy

Inflows into equity mutual funds jump 14.5% to Rs 41,156 crore in December: AMFI (January 09, 2025)

Inflows into equity mutual funds rose 14.5 per cent on a month-on-month basis to Rs 41,155.91 crore in December from Rs 35,943.49 crore in the previous month, the latest data from the Association of Mutual Funds in India (AMFI) showed.

In December, inflows through systematic investment plan (SIP) stood at Rs 26,459 crore, compared to Rs 25,320 crore in November 2024.

Net assets under management (AUM) declined marginally by 1.69 per cent to Rs 66,93,032.12 crore in December, compared to Rs 68,08,101.16 crore in the previous month.

For details:

<https://indianexpress.com/article/business/inflows-equity-mutual-funds-jump-december-amfi-9769001/>

❖ International Financial Services Centres Authority (IFSCA)

Consultation Paper on SPV Framework under IFSCA (Fund Management) Regulations, 2022 (January 09, 2025)

IFSCA has uploaded a consultation paper on its website seeking comments/views/ suggestions from the public on the proposed Framework for Special Purpose Vehicle (SPV) for co-investment and leverage transaction under IFSCA (Fund Management) Regulations 2022.

It enables the creation of SPVs under a "Controlling Scheme," allowing other investors to co-invest alongside the scheme or facilitate leveraging at the SPV level. This setup is expected to broaden investment opportunities and strengthen financial operations in IFSCs. This consultation paper inter-alia comprises of SPV structure, eligible investors, permissible investments, Disclosures, computation of NAV, other conditions etc.

The comments/suggestions may be submitted to IFSCA latest by January 31, 2025 in the prescribed format.

For details: <https://ifsc.gov.in/ReportPublication?Mid=2-DsiKaFzcA=>

❖ Ministry of Finance

Union Government releases tax devolution of ₹1,73,030 crore to State Governments to accelerate capital spending and finance their development and welfare-related expenditures (January 10, 2025)

The Union Government has released tax devolution of ₹1,73,030 crore to State Governments on 10th January, 2024, as against the devolution of ₹89,086 crore in December 2024.

A higher amount is being devolved this month to enable states to accelerate capital spending and finance their development and welfare-related expenditures.

For details: <https://pib.gov.in/PressReleasePage.aspx?PRID=2091732>

❖ **ESG Updates****Morgan Stanley, Citi, Bank of America Join Others in Exiting Net Zero Banking Alliance (January 08, 2025)**

Morgan Stanley, Citi, and Bank of America have joined Wells Fargo and Goldman Sachs in exiting the Net-Zero Banking Alliance (NZBA), a coalition aimed at achieving net-zero emissions by 2050. Citi explained its decision by highlighting progress toward its own net-zero goals, independent of the NZBA framework.

For details: <https://esgnews.com/morgan-stanley-citi-bank-of-america-join-others-in-exiting-net-zero-banking-alliance>

❖ **Insolvency and Bankruptcy****Extension of time for filing Forms to monitor liquidation and voluntary liquidation processes under the Insolvency and Bankruptcy Code, 2016, and the regulations made thereunder (January 09, 2025)**

According to IBBI Circulars No. IBBI/LIQ/73/2024 and No. IBBI/LIQ/74/2024 dated 28.06.2024, the liquidators were directed to file forms relating to the liquidation and voluntary liquidation process latest by 30.09.2024. The last date was extended till 31.12.2024 vide Circular No. No. IBBI/LIQ/79/2024 dated 02.12.2024.

In this regard, representations have been received from the liquidators and Insolvency Professional Agencies for extending the date citing the technicalities and issues involved in the submission of the forms. 3. Considering the above-mentioned representations and difficulties faced by the liquidators, it has been decided to extend the last date of submission of the liquidation and voluntary liquidation forms till 31.03.2025. In case of any clarification, the Frequently Asked Questions (FAQs) as available on www.ibbi.gov.in may be referred. Further, any technical issues or difficulties in filing may be reported to formsupport@ibbi.gov.in.

Furthermore, it has been observed that some IPs have been submitting incorrect information in the forms, such as entering zero values in all fields. In this regard, it is directed that IPs shall ensure the information submitted is accurate, truthful, and consistent with the supporting documents attached.

For

details: <https://www.ibbi.gov.in/uploads/legalframework/969863b34aa1d5ad911c0b94ac920a96.pdf>

❖ **Ministry of Commerce & Industry****Ministry of Commerce and Industry revises trade data after reconciliation (January 09, 2024)**

The provisional Quick Estimates (QE) of EXIM data for the month of Nov'24 was released on 16th December, 2024. On noticing unusual surge in imports of precious metals, DGCI&S under Ministry of Commerce and Industry has jointly taken up a detailed examination with DG (Systems), CBIC. During the reconciliation exercise, primarily, it was observed that due to migration of data transmission mechanism from SEZ to ICEGATE, figures of precious metals needed revision as it was noticed as the system was calculating both imports into SEZ and subsequent clearance into DTA as separate transactions after the migration.

For details: <https://pib.gov.in/PressReleasePage.aspx?PRID=2091578>

❖ **Pronouncement**

10.12.2024	<i>Sanjay Sharma versus Kotak Mahindra Bank Ltd. & Ors.</i>	<i>Supreme Court</i>
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The registration of the sale deed for an immovable property is essential to complete and validate the transfer.

In this case, the Supreme Court has laid down when the transfer in an Immovable property completes. The court said that:

Section 54 of the Transfer of Property Act, 1882, defines a “sale” as the transfer of ownership in exchange for a price that is either paid, promised, or part-paid and part-promised. This provision further describes the manner in which a sale is effected. It stipulates that, in the case of tangible immovable property valued at one hundred rupees or more, the transfer can be made only through a registered instrument. The use of the term “only” signifies that, for tangible immovable property valued at one hundred rupees or more, a sale becomes lawful only when it is executed through a registered instrument. Where the sale deed requires registration, ownership does not pass until the deed is registered, even if possession is transferred, and consideration is paid without such registration. The registration of the sale deed for an immovable property is essential to complete and validate the transfer. Until registration is effected, ownership is not transferred.

❖ **Terminology**

Mental accounting: It interprets the tendency of people to mentally segregate their financial resources into different categories. In the event of financial losses or gains in different mental accounts, people will be impacted differently than if the financial loss was integrated across their entire financial portfolio.

❖ **Market Watch**

Stock Market Indices as on 10.01.2025	
S & P BSE Sensex	77378.91 (-0.31%)
Nifty 50	23431.50 (-0.40%)

Foreign Exchange Rates as on 10.01.2025 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
85.89	88.34	105.47	0.54

Prepared by Directorate of Academics

For any suggestions, please write to academics@icsi.edu,

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